

DEPARTMENT OF THE NAVY
NAVAL AIR SYSTEMS COMMAND RADM WILLIAM A. MOFFET BUILDING 47123 BUSE
ROAD, BLDG 2272
PATUXENT RIVER, MARYLAND 20670-1547

IN REPLY REFER TO:

CJ&A_22-0257



CLASS JUSTIFICATION AND APPROVAL
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION

1. Contracting Activity.

Naval Air Systems Command (NAVAIR) Headquarters

2. Description of the Action Being Approved.

This Class Justification and Approval (CJ&A) authorizes and approves the issuance of sole source contract actions with Raytheon Missiles and Defense (RMD) of Tucson, Arizona, for follow-on Full Rate Production (FRP) 20-24 Tactical Tomahawk (TACTOM) Block V and Block Va All-Up-Round (AUR) missiles; repair requirements for TACTOM AURs not covered under TACTOM production warranty; and other hardware and related services for U.S. Navy (USN), other Department of Defense (DoD) Service customers and potential Foreign Military Sales (FMS) customers. FRP20 was included in the approved CJ&A_21-0066 however due to increased quantity to budget buys, FMS and the BLK Va configuration the CJ&A_21-0066 did not provide sufficient coverage. The authority to act under this CJ&A expires on March 31, 2029.

3. Description of Supplies/Services.

This CJ&A authorizes the procurement(s) of TACTOM AUR missiles with an estimated [REDACTED] and any additional quantities as authorized and appropriated by Congress for the Navy or other DoD Service customers and potential Foreign Military Sales (FMS).

Additionally, this CJ&A authorizes procurements of the following to support the FRP20 (FY24) through FRP24 (FY28):

- Pre-test, test, and post-test support for Tomahawk Flight Tests and Production Acceptance Testing ground tests;
- Cost reduction and affordability improvements;
- Obsolescence management, resolution of subsystem/component obsolescence, and implementation of obsolescence solutions for: TACTOM hardware, Mid-body Range Safety Subsystem kits, Flight Test kits, Composite Capsule Launch System, Torpedo Tube Launch and associated tooling, test equipment and Life of Type Buys (LoTB);

- LoTB for Block V TACTOM systems, subsystems, or components required to support the production or recertification efforts;

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- Post-production/post-delivery systems engineering, logistics support, and emergent systems engineering, studies and other tests;
- Flight abort/anomaly/failure investigations and analysis;
- Over and above repair for rejected warranty missiles;
- Unscheduled maintenance or over and above work for all missile variants, and repair of components not covered under the TACTOM production warranty;
- Upgrades, obsolescence and support of the Guidance Test System;
- Government Furnished Property, and Hardware-in-the-Loop, e.g., System Integration Lab, Special Tooling, and Special Test Equipment;
- Simulations and maintenance of simulation software and data;
- Magazine storage;
- Technical and administrative data and documentation;
- Related Engineering Support Services;
- Integrated logistics services and other related efforts

The total estimated contract value is approximately [REDACTED] based on Most Likely Quantity (MLQ) with maximum contract ceiling of [REDACTED]. The MLQ estimate reflects the planned funding profile based on authorization from [REDACTED] US and FMS TACTOM AUR Missiles for FY24-FY28. The current FRP20-24 MLQs are [REDACTED], [REDACTED] respectively. The maximum ceiling is the estimated costs for an estimated combination of Block V/Va missiles based on a maximum [REDACTED]. The variation in quantity per year [REDACTED] will be established during negotiations, in order to accommodate any additional quantities as authorized and appropriated by Congress for the Navy or other DoD Service customers and potential Foreign Military Sales (FMS).

Efforts covered by this CJ&A are anticipated to be complete by end of December 2031. The total estimated value of associated contract actions is [REDACTED] and is anticipated to be funded as depicted in the following table.

Estimated Dollar Value in Millions

Source	
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

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4. Statutory Authority Permitting Other Than Full and Open Competition.

10 U.S.C. 3204(a)(1) (formerly known as 10 U.S.C. 2304(c)(1)), Only one responsible source and no other supplies or services will satisfy agency requirements.

5. Rationale Justifying Use of Cited Statutory Authority.

Pursuant to Federal Acquisition Regulation (FAR) 6.302-1(a)(2)(ii)(A), NAVAIR has determined the required supplies and services are available only from the original source in the case of a follow-on contract for the continued development or production of a major system or highly specialized equipment, including major components thereof, and award to any other source would result in substantial duplication of costs to the Government not expected to be recovered through competition. NAVAIR estimates the duplicative cost to be upwards of [REDACTED], based upon the estimated cost of the requisite design, testing, and requalification of a new contractor's missile system. The Government could not expect to recover these costs through competition.

As a result of a competitive procurement in 1994, RMD was selected as the sole producer of the TACTOM AUR missile. RMD maintains and controls both the Technical Data Package (TDP) and the manufacturing documentation for the TACTOM and associated Government Special Tooling, Special Test Equipment and Government Property due to the performance-based nature of the TACTOM development and production contracts. The Navy has not procured TDPs adequate for competition of the TACTOM AUR missile and associated support. Further, RMD is not willing to sell the USN the Level III TDP, which would be required for a competitive procurement.

RMD is the only known source that currently possesses the required technical knowledge, expertise, data, and facilities required to produce and maintain the TACTOM AUR to meet USN Fleet, other DoD Service customers and FMS customer requirements.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable.

Requests for Information or Sources Sought requirements, pursuant to FAR 5.204 as a special notice, have been waived for the TACTOM AUR missile in accordance with DFARS PGI 206.301-1(d) for the procurement of the TACTOM AUR missiles. In accordance with FAR 5.201(b), NAVAIR synopsisized the TACTOM AUR missile requirement on SAM.gov on July 20, 2022 and received no responses. No additional market research was conducted because it is not practicable for any company other than RMD to provide the required supplies and services for the reasons discussed in paragraph five.

7. Determination of Fair and Reasonable Cost.

The Contracting Officer has determined the anticipated cost to the Government of the supplies/services covered by this CJ&A will be fair and reasonable.

8. Actions to Remove Barriers to Future Competition

For the reasons set forth in paragraph five, NAVAIR has no plans at this time to compete future contracts for the types of supplies and services covered by this document. If another potential source emerges, NAVAIR will assess whether competition for future requirements is feasible. NAVAIR will conduct market research. In an effort to augment the current capacity limited energetics industrial base, the Government is exploring with Naval Air Warfare Center-Weapons

Division (NAWC-WD) China Lake and Naval Surface Warfare Center (NSWC) Indian Head the possibility of manufacturing the TACTOM energetic subsystems organically to the Navy, to include the WSU-36/B warhead.

As this is a follow-on for supplies and services previously awarded on a non-competitive basis, in accordance with DFARS PGI 206.304(a)(S-70)(i), the prior J&A was provided to the approval authority for review. Approval of this J&A signifies the approval authority has made the determination required by DFARS PGI 206.304(a)(S-70)(ii).

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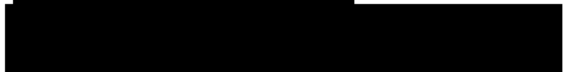
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CERTIFICATIONS AND APPROVAL

TECHNICAL/REQUIREMENTS CERTIFICATION

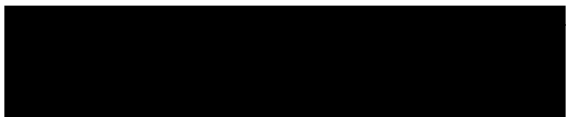
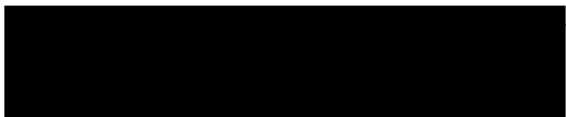
I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein, are complete and accurate to the best of my knowledge and belief.

Technical/Requirements Cognizance:

			
Signature	Name (Printed)	Phone No.	Date

LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.

			
Signature	Name (Printed)	Phone No.	Date

CONTRACTING OFFICER CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief.

			
Signature	Name (Printed)	Phone No.	Date

SENIOR PROCUREMENT EXECUTIVE APPROVAL

Upon the basis of the above justification, I hereby approve, as Senior Procurement Executive of the Navy, the solicitation of the proposed procurement(s) described herein using other than full and open competition, pursuant to the authority of 10 U.S.C. 3204(a)(1), Only one responsible source and no other supplies or services will satisfy agency requirements